

3. 9:00 AM CASE NUMBER: C23-02785
CASE NAME: M.P.G. VS. ANTIOCH UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES AND PRODUCTION OF STUDENT RECORDS RE PERPETRATOR STUDENT J.M.C.**
FILED BY: M.P.G.
TENTATIVE RULING:

Plaintiff's Motion to Compel Further Responses and Production of Student Records Regarding Perpetrator Student J.M.C. is granted.

Plaintiff's Motion is made pursuant to CFR § 99.31.

The Court orders as follows:

Within 21 days of this Order, Defendant AUSD must produce unredacted copies of all responsive documents regarding perpetrator student J.M.C., including records withheld pursuant to the parental objection under FERPA and any responsive records not subject to FERPA protections. Defendant AUSD may designate these documents CONFIDENTIAL pursuant to the terms of the Protective Order.

4. 9:00 AM CASE NUMBER: C23-03023
CASE NAME: NIMA ATAEI VS. FCA US LLC
***HEARING ON MOTION IN RE: SET TRIAL DATE OR SCHEDULE TRIAL SETTING CONFERENCE**
FILED BY: ATAEI, NIMA
TENTATIVE RULING:

Appearance required.

5. 9:00 AM CASE NUMBER: C23-03102
CASE NAME: ALBERTO MALDONADO VS. RICARDO SALAS
***HEARING ON MOTION IN RE: FOR DETERMINATION OF GOOD FAITH SETTLEMENT**
FILED BY: SALAS, RICARDO
TENTATIVE RULING:

Before the Court is Defendant Richard Salas' Motion for Determination of Good Faith Settlement ("Motion").

Defendant Salas' Motion is **denied without prejudice** for the reasons set forth below.

Factual and Procedural Background

This matter pertains to a multiple motor vehicle accident that occurred on April 1, 2022, at

approximately 4:25 a.m. According to the police report, the accident occurred on the westbound portion of I-80 in Pinole. Due to slowing traffic, Plaintiff Maldonado came to a complete stop in the #2 lane. Non-parties Williams and Rodriguez also came to a complete stop in the #1 and #3 lanes, respectively.

Defendant Salas was driving his Tesla at approximately 70- miles per hour. He asserts that he had the Tesla in 'self-driving mode' at the time. The traffic report indicates that he noticed traffic was slowing down and he assumed that the Tesla would slow down on its own. When it did not, he stepped on the brakes and veered to avoid hitting Maldonado. His actions were too late, and Mr. Salas collided with Mr. Maldonado as well as Williams – who was pushed into Rodriguez. The police report notes that the cause of the accident was Salas' driving at an unsafe speed. No citation was issued.

Plaintiff Maldonado filed his complaint in this matter on December 7, 2023. It alleges four causes of action: (1) strict products liability; (2) negligent produces liability; (3) motor vehicle negligence; and (4) general negligence. All causes of action are alleged against Tesla, while only causes of action 3 and 4 are alleged against Defendant Salas.

Standard

Code of Civil Procedure § 877.6 (a)(1) provides, in relevant part, "Any party to an action in which it is alleged that two or more parties are joint tortfeasors [...] shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors [...]" The issue of good faith must be determined on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response. (Code Civ. Proc., § 877.6 (b).)

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. §877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt*. That case identified six nonexclusive factors for determining if a settlement was made in good faith:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, supra, 38 Cal.3d at p. 499.)

A settlor's percentage of liability is the touchstone question to be considered in a contested good faith settlement proceeding. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1262-

1264 The settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*Id.* at 1263.)

The party asserting the lack of good faith has the burden of proving “that the settlement is so far ‘out of the ballpark’ in relation to the factors [noted above] as to be inconsistent with the equitable objectives of the statute.” (*Tech-Bilt*, *supra*, 38 Cal.3d at 499-500.)

Analysis

Defendant Salas has agreed to pay Plaintiff the amount of \$2,325,000.00, which is the balance of his insurance policy limits applicable to this incident. In exchange, Plaintiff will dismiss the current action against Defendant Salas and fully release of all claims related to the accident.

If a motion for good faith determination is unopposed, a “barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.) If the motion is contested, the burden of proving the lack of good faith is on the contesting party. (*Id.* at 1262.)

However, before that can happen, the moving party must make a sufficient showing of all the *Tech-Bilt* factors. This can be done in the original motion or by filing counterdeclarations to negate the lack of good faith asserted by the nonsettling contesting party. (*Ibid.*)

“The settling party’s proportionate liability is one of the most important factors.” (*Long Beach Memorial Medical Center v. Superior Court* (2009) 172 Cal.App.4th 865, 873.) Salas’ opening papers indicated that he has agreed to pay \$2,325,000 to settle the matter. He fails, however, to provide any insight into what Plaintiff’s potential recovery could be or any discussion regarding his own potential liability. Without having any additional evidence regarding these factors, the Court cannot make a determination as to the propriety of the settlement amount.

Tesla highlights this lack of evidence in its opposition. Tesla submits Plaintiff’s Statement of Damages (which it notes is inadmissible) to indicate that Plaintiff is claiming over \$12 million in damages, these amounts do not include loss of earnings information. There is no discussion regarding the viability of Plaintiff’s numbers.

In Reply, Salas fails to address these issues. There is still no discussion nor evidence indicating what Plaintiff’s potential recovery could be. In addition, there is no analysis regarding what the proportionate liability between Salas and Tesla might be. Salas’ counsel provides a declaration that states that is “assessment is that SALAS has little to no liability for the subject matter.” (Strenza Decl. ¶ 4.)

“All affidavits relied upon as probative must state evidentiary facts; they must show facts and circumstances from which the ultimate fact sought to be proved may be deduced by the court.” (*Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834.) “Affidavits and declarations setting forth only conclusions, opinions or ultimate facts are to be held insufficient; even an expert’s opinion cannot rise to the dignity of substantial evidence if it is unsubstantiated by facts.” (*Ibid.*)

Mr. Strenza provides no factual support or analysis for his opinion. There is no discussion as to where this analysis comes from. There is no discussion regarding the potential damages Plaintiff may obtain. Without some discussion regarding the possible damages, it is impossible for the Court to determine

whether the \$2,325,000 is a reasonable amount.

"A determination as to the good faith of a settlement, within the meaning of section 877.6, necessarily requires the trial court to examine and weigh a number of relevant factors, *one of the most important of which is the settling party's proportionate liability.*" (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1350 quoting *Toyota Motor Sales U.S.A., Inc. v. Superior Court* (1990) 220 Cal.App.3d 864, 871, italics in original.) "If *"there is no substantial evidence to support a critical assumption as to the nature and extent of a settling defendant's liability,* then a determination of good faith based upon such assumption is an abuse of discretion." (*Ibid.* italics in original.)

The Court acknowledges that \$2,325,000 is a substantial amount of money. However, without any evidence and discussion indicating what Plaintiff's potential recover is and evidence supporting Salas' counsel's opinion that he has little to no liability for the subject accident, the Court cannot make a reasoned determination as to the good faith nature of the settlement.

Conclusion

Defendant/Cross-Complainant Richard Salas' motion for determination of good faith settlement is **denied without prejudice**. Mr. Salas is free to file a new motion with additional evidence in support if he so desires.

6. 9:00 AM CASE NUMBER: C24-00162
CASE NAME: MARIA MALDONADO VS. GJACE RIDDELL
*HEARING ON MOTION IN RE: FOR LEAVE FOR ORDER REQUIRING PLAINTIFF MARIA MALDONADA
TO SUBMIT TO MULTIPLE INDEPENDENT MEDICAL EXAMS
FILED BY: RIDDELL, GJACE MORGAN
TENTATIVE RULING:

Vacated.

7. 9:00 AM CASE NUMBER: C24-00841
CASE NAME: BRIAN BANIQUED VS. JUAN MANCHENO
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS & FOR AWARD OF ATTORNEY'S FEES
FILED BY: MANCHENO, JUAN C.
TENTATIVE RULING:

Before the Court is a motion to expunge *lis pendens* filed by Defendant Juan C. Mancheno ("Defendant" or "Mancheno"). Plaintiff Brian Baniqued and Baniqued Realty Inc. dba Baniqued Commercial Real Estate ("Plaintiffs" or "Baniqued") recorded the *lis pendens* against 3114 Hermitage Road, Pebble Beach, California 93953.